



* good P5/s6

2.50" core

NewTek Sensor Solutions
Pennsauken NJ USA

NT-R-650-650-3098

Serial Number 0

Independent Linearity Data Least Squares Line

07-14-2023
15:25:28

Meas. Inches	Meas. S1 Volts	Meas. S2 Volts	Meas. Diff	Meas. Sum	Meas. Ratio	Calc Ratio	Percent Error
-0.65000	1.55905	2.13563	-0.57658	3.69468	-0.15606	-0.15707	0.32
-0.52000	1.61924	2.08800	-0.46876	3.70724	-0.12644	-0.12579	-0.21
-0.39000	1.67804	2.03240	-0.35436	3.71044	-0.09550	-0.09452	-0.32
-0.26000	1.73784	1.97552	-0.23768	3.71336	-0.06401	-0.06324	-0.25
-0.13000	1.79761	1.91635	-0.11874	3.71396	-0.03197	-0.03197	-0.00
0.00000	1.85683	1.85723	-0.00040	3.71406	-0.00011	-0.00070	0.19
0.13000	1.91435	1.79808	0.11627	3.71243	0.03132	0.03058	0.24
0.26000	1.97218	1.74008	0.23210	3.71226	0.06252	0.06185	0.22
0.39000	2.02882	1.68147	0.34735	3.71029	0.09362	0.09312	0.16
0.52000	2.08523	1.62354	0.46169	3.70877	0.12449	0.12440	0.03
0.65000	2.13908	1.56662	0.57246	3.70570	0.15448	0.15567	-0.38

Sensitivity = 0.241 mV/V/.001 Inch (Diff/Sum)

Calculated Null= -0.0007 Ratio

Linearity = -0.384 %

Sum Average: 3.7094

Sum Max Dev. : 0.0147

Input Voltage= 5 volts AC

Input Frequency = 2200 Hz

2p $\frac{4.9959}{.010530}$ 474 ~

2s $\frac{4.9811}{.019672}$ 253 ~

QC _____

Made in USA

works thereof, and Recipient shall provide a written undertaking signed by an appropriate officer of Recipient certifying that all such information and material has been either destroyed or returned and that no copies remain in Recipient's possession, except to the extent required by applicable law or regulation and provided that such retained information remains subject to this Agreement.

7. Injunction. Recipient acknowledges that, due to the unique nature of the Confidential Information, in the event of any breach of this Agreement, Discloser may be irreparably harmed such that it could not be made fully whole by monetary damages. Accordingly, in addition to any other remedy to which Discloser may be entitled in law or equity, Discloser shall be entitled to seek a temporary restraining order and a preliminary and permanent injunction to prevent and/or remedy breaches or threatened breaches of this Agreement and/or to compel specific performance of this Agreement. If Discloser is successful in obtaining such relief, Recipient shall reimburse Discloser for all costs and expenses, including attorneys' fees, incurred by Discloser in connection with such proceedings.

8. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its provisions relating to conflict of laws. The Parties consent to the personal jurisdiction of the courts sitting in that state for the purpose of adjudicating any dispute arising out of or in connection with this Agreement.

9. Severability. If any provision of this Agreement shall be deemed by a court of competent jurisdiction to be illegal, invalid, or unenforceable, either in whole or in its application to a particular circumstance: (a) such provision shall be deemed amended to conform to the applicable law so as to be valid and enforceable or, if it cannot be so amended without materially altering the intentions of the Parties set forth in this Agreement, it shall be stricken; (b) the legality, validity, and enforceability of such provision shall not in any way be affected or impaired thereby in any other jurisdiction; and (c) the remainder of the Agreement will remain in full force and effect.

10. Entire Agreement. This Agreement sets forth the entire agreement and understanding between the Parties as to the subject matter and supersedes and replaces all prior discussions, commitments, agreements, arrangements, and understandings of any nature relating to the subject matter hereof.

11. Term and Survival. The term for this Agreement shall begin on the Effective Date and shall continue for a term of five (5) years. This Agreement may be extended for successive terms of one (1) year by written agreement of the Parties entered before the termination of the then-current term. The nondisclosure, nonuse, and ownership provisions of this Agreement shall survive the termination of this Agreement for a period of five (5) years. Notwithstanding the above, if either Party holds information as a "trade secret," the foregoing commitments shall remain in place as long as the applicable information retains its status as a trade secret.

12. Counterparts. This Agreement may be signed in one or more counterparts delivered by mail, facsimile, or email, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

[Remainder of page intentionally left blank]

or disclosure of the Confidential Information or the commingling of Confidential Information with other information.

If Recipient believes that it is required by a court order, governmental obligation, or the equivalent to disclose Confidential Information that is otherwise governed by this Agreement, Recipient shall (if permitted by law) immediately notify Discloser in writing of the particulars and shall cooperate with Discloser's efforts (at Discloser's expense) to prevent or limit any required disclosure, such as by obtaining a protective order. If Discloser is unable (or declines) to obtain relief from such a disclosure requirement, Recipient may make the disclosure, but only to the extent required by the court order or governmental obligation.

The Parties agree that the disclosure and/or receipt of Confidential Information under this Agreement shall not create an obligation limiting or restricting the work assignments of their respective Employees who have had access to Confidential Information.

If Recipient becomes aware of an actual or suspected or anticipated breach of the obligations of nondisclosure and/or nonuse imposed by the Agreement, it shall immediately notify Discloser in writing of the particulars and shall cooperate with Discloser's efforts to prevent and/or remedy the situation. This provision is independent of Discloser's other rights and remedies under this Agreement.

3. Export of Technical Data. The Parties acknowledge that the Confidential Information may be subject to US export control laws and regulations, and that each Party has the responsibility to obtain export licenses, or other export authority as may be required before exporting such information to foreign countries or providing access to foreign persons. Company certifies that recipient(s) of Firefly Confidential Information which is marked as U.S. export-controlled is (are) U.S. person(s) as defined in 22 C.F.R. § 120.15 and that the Company will notify Firefly of (and cooperate in resolving) any unauthorized export involving Firefly's Confidential, export-controlled information which is the fault of the Company. Furthermore, as best practice, both Parties acknowledge the risk inherent in e-mailing confidential information and hereby agree to exercise reasonable security measures when transferring confidential information electronically.

4. Ownership. Recipient shall not, by virtue of this Agreement, acquire any license, right, title, or interest in any part of the Confidential Information (or in any other intellectual property of Discloser or its Affiliates) other than the limited nonexclusive right to access the Confidential Information for the Purpose. Recipient is not authorized to make derivative works of the Confidential Information. As between the Parties, Discloser shall own all right, title, and interest in and to the Confidential Information and any derivative works thereof.

5. Warranties. All Confidential Information is provided "as is," without warranty (express or implied) of any kind, and with all faults and errors. This Agreement shall not create any obligation on the part of Discloser to disclose any information or complete information to Recipient.

6. Return. Upon Discloser's request, Recipient shall within ten (10) business days either destroy or return to Discloser all Confidential Information in all forms, along with all derivatives



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Mutual Confidentiality and Nondisclosure Agreement

This Mutual Confidentiality and Nondisclosure Agreement (“Agreement”), effective as of August 11, 2021 (“Effective Date”), is entered by and between NewTek Sensor Solutions (“Company”) and Firefly Aerospace Inc. (“Firefly”), a Delaware corporation having a principal place of business at 1320 Arrow Point Drive, Suite 109, Cedar Park, TX 78613, individually “Party” and collectively “Parties.”

The Parties are willing to disclose certain confidential information to each other in connection with the Parties’ consideration of a possible business arrangement between them (the “Purpose”), provided that each Party holds such information in strict confidence pursuant to the terms and conditions of this Agreement. For purposes of this Agreement, a Party that discloses Confidential Information shall be referred to as “Discloser” and a Party that receives Confidential Information shall be referred to as “Recipient.”

Firefly and Company agree as follows:

1. Definition. “Confidential Information,” means any and all information provided or otherwise made accessible by Discloser or any of its Affiliates to Recipient or any of its Affiliates (whether orally, electronically, in writing, or otherwise), including without limitation business ideas or plans, market information, financial information, inventions (whether or not patentable), works of authorship, trade secrets, know-how, technical information, methods, concepts, proprietary information, and software or other computer programming code. Confidential Information shall be marked “confidential” or “proprietary” at the time it is disclosed or, if disclosed orally, shall be identified by Discloser as confidential at the time of disclosure and confirmed by Discloser to be confidential in a writing delivered to Recipient within ten (10) business days following oral disclosure. Notwithstanding the above, if Recipient knew or should have known that information should have been marked “confidential” or “proprietary,” the Recipient must treat that information as Confidential Information until Recipient receives clarification, in writing, from Discloser that such information is not Confidential Information. Confidential Information shall not include any information that: (a) is or becomes generally available to the public through no fault of Recipient; (b) was in Recipient’s lawful possession prior to disclosure hereunder; or (c) comes into Recipient’s lawful possession after disclosure hereunder without obligation of confidentiality and without breach by any Party of a duty of confidentiality owed to Discloser or any of its Affiliates. “Affiliate” or “Affiliates” means any person, partnership, joint venture, corporation, or other form of enterprise, domestic or foreign, that directly or indirectly controls, is controlled by, or is under common control with a Party to this Agreement. “Employee” or “Employees” shall include the employees, owners, representatives, and consultants of the respective Party.

2. Duties of Nondisclosure and Nonuse. Recipient shall: (a) hold, treat, preserve and maintain all Confidential Information in confidence, disclosing it only to those of its Employees who have a need to know the Confidential Information in connection with the Purpose and who are bound by obligations of confidentiality no less protective than this Agreement; (b) not disclose the Confidential Information to any third Party; (c) not use the Confidential Information for any purpose other than the Purpose; and (d) use all reasonable diligence to prevent unauthorized use

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